Appendix—Public Land Orders

[Public Land Order 786]

ALASKA

RESERVING PUBLIC LANDS FOR THE USE OF THE ALASKA COMMUNICATION SYSTEM; RESTORING CERTAIN LANDS TO NATIONAL FOREST STATUS; REVOKING IN PART EXECUTIVE ORDER NO. 9114 OF MARCH 28, 1942

By virtue of the authority vested in the President by the act of June 4, 1897, 30 Stat. 11, 36 (16 U. S. C. 473), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

1. Subject to valid existing rights, including the right of use by the public of the Sitka Highway (Halibut Point Road) which intersects the tract of land reserved hereby, the following-described tract of public land in Alaska is hereby withdrawn from all forms of appropriations under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Alaska Communication System, Department of the Army, as a radio communication site:

Beginning at corner #3 or North corner of lot 10, U. S. Survey #2418, thence S. 30° 00' E. 850 feet, more or less to the Northwest bank of Cascade Creek; thence meandering in a Southwesterly direction along said bank of Cascade Creek 575 feet, more or less, to the mean high tide level of Sitka Sound; thence meandering along the mean high tide level of Sitka Sound in a Northwesterly direction approximately 800 feet to its intersection with an extension of the 3–4 line of lot 10 of said survey; thence N. 60° 00' E. 545 feet, more or less, to the point of beginning. The area described contains approximately 10.5 acres.

2. The following-described land, which is a part of Tract 2 reserved by Executive Order No. 9114 of March 28, 1942, for military purposes, is hereby restored to national forest status as part of the Tongass National Forest:

Beginning at a point from which corner No. 1 U. S. Survey No. 1763 bears S. 52° 21' W., 1,500 feet, thence by metes and bounds:

N. 52° 21' E., 5,811.5 feet to corner No. 2;

S. 27°59' 40'' E., 14,734.0 feet to corner No. 3, identical with corner No. 3, U. S. Survey No. 1,763;

S. 64° 55' 50'' W., 5,508.20 feet;

N. 30° W., 13,350.0 feet to the point of beginning.

The tract described contains 1,820.2 acres.

3. The said Executive Order No. 9114, as amended by Executive Order No. 9526 of February 28, 1945, is hereby revoked so far as it affects the lands described in this order.

This order shall become effective immediately except that paragraph numbered 2, restoring lands to national-forest status, shall become effective at 10:00 a. m., on the 35th day from the date hereof.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JANUARY 5, 1952.

[F. R. Doc. 52-404; Filed, Jan. 10, 1952; 8:49 a. m.]

TITLE 45—PUBLIC WELFARE

Chapter I—Office of Education, Federal Security Agency

PART 105—FINANCIAL ASSISTANCE FOR CURRENT EXPENDITURES FOR PUBLIC SCHOOLS IN AREAS AFFECTED BY FEDERAL ACTIVITIES

MISCELLANEOUS AMENDMENTS

Part 105, 16 F. R. 5901, is amended by the addition of §§ 105.7, 105.8 and 105.23, as follows:

§ 105.7 *Deadline for applications for payments from funds appropriated for the fiscal year 1952.* March 31, 1952, at 12:00 o'clock noon is hereby fixed as the time on or before which all applications for payments out of funds appropriated for the fiscal year 1952 shall be received by the Commissioner.

§ 105.8 *Applications received after deadline not considered for payment.* Applications received by the Commissioner after March 31, 1952, at 12:00 o'clock noon will not be considered for payment from funds appropriated for the fiscal year 1952.

§ 105.23 *Payments from fiscal year 1952 appropriations.* As prescribed by section 5 (c), 64 Stat. 1106, 20 U. S. C. 240 (c), if the funds appropriated for the fiscal year 1952 for such purposes are not sufficient to pay in full the total amounts which all local educational agencies whose applications have been considered for payment pursuant to § 105.7 are entitled to receive for such fiscal year, the Commissioner will reduce the amounts which he certifies under section 5 (b), 64 Stat. 1106, 20 U. S. C. 240 (b), for such fiscal year for payment to each such agency by the percentage by which the funds so appropriated are less than the total necessary to pay such agencies the full amount which they are entitled to receive under the act and the showings under and pursuant to their respective applications.

(Sec. 7, 64 Stat. 1107; 20 U. S. C. 242. Interpret or apply sec. 5, 64 Stat. 1106; 20 U. S. C. 240)

Dated: January 3, 1952.

[SEAL] EARL J. MCGRATH,
U. S. Commissioner of Education.

Approved: January 7, 1952.

JOHN L. THURSTON,
Acting Federal Security Administrator.

[F. R. Doc. 52-426; Filed, Jan. 10, 1952; 8:50 a. m.]

PROPOSED RULE MAKING

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 12]

[Docket No. 10102]

RADIO AMATEUR CIVIL EMERGENCY SERVICE

NOTICE OF PROPOSED RULE MAKING

In the matter of providing a Radio Amateur Civil Emergency Service; Docket No. 10102.

1. Notice is hereby given of proposed rule-making in the above-entitled matter.

2. It is proposed to amend Part 12, "Amateur Radio Service" by the addition of a new subpart under the title, "Radio Amateur Civil Emergency Service." To accomplish this it is proposed to divide Part 12 into two subparts, to be called Subpart A and Subpart B. Subpart A shall include all present rules of Part 12, through and including § 12.162, preceded by the subtitle, "Amateur Radio Stations and Operators." No changes in existing amateur rules, except as to format and addition of the described subtitle, is contemplated in this proceeding. In addition, it is proposed to add a new Subpart B, entitled, "Radio Amateur Civil Emergency Service," to be followed by the present Appendix to Part 12. The new rules proposed provide for a new temporary amateur radio service designed to afford radio communication for civil defense purposes. These rules contemplate that persons now holding amateur radio licenses shall apply for an additional authorization to operate in the new service in order to participate in civil defense communications activities. Authorizations for individual amateur stations to operate in the Radio Amateur Civil Emergency Service will be granted upon the express understanding that such grant is subject to change or cancellation at any time without hearing if, in the discretion of the Commission, such action is deemed necessary for the national defense and security, and with the further understanding that the Commission, when normal conditions are restored, may terminate the Radio Amateur Civil Emergency Service by appropriate order giving 30 days' notice, or less, and thus invalidate outstanding authorizations to operate in this service prior to their normal expiration dates.

3. The proposed amendments are set forth below and are issued under the authority of sections 1.4 (i) and 303 (b), (1), and (r) of the Communications Act of 1934, as amended.

4. Any interested person who is of the opinion that the proposed amendments should not be adopted, or should not be adopted in the form set forth, may file with the Commission on or before February 15, 1952, a written statement or brief setting forth his comments. At the same time any person who favors the amendments as set forth may file a statement in support thereof. Comments or briefs in reply to the original comments or briefs may be filed within fifteen days from the last day for filing the said original comments or briefs. The Commission will consider all such comments,